

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.72. Responsibilities of Schools.

- (a) Each school must have the current law and rules book.
- (b) Each school is responsible for compliance with the health and safety standards of this chapter.
- (c) Each school must ensure that any alterations to a school's floor plan are in compliance with the Act and this chapter.
- (d) The certificate of curriculum approval must be posted in a conspicuous place in the school. A current syllabus and lesson plan for each course must be maintained by the school and be available for inspection.
- (e) Schools must have at least one instructor on duty for each 25 students in attendance, including evening classes. An instructor must be physically present during all practical curriculum standard activities, and physically present or participating through distance education for theory curriculum standard activities. No credit for instructional hours can be granted to a student unless such hours are accrued under the supervision of an instructor.
- (f) Schools offering distance education must:
 - (1) obtain department approval before offering a course;
 - (2) provide students with the educational materials necessary to fulfill course requirements; and
 - (3) comply with the curriculum standards in §83.202(e) by limiting distance education to instruction in theory.
- (g) Schools must maintain one album to display each student permit, including affixed picture, of each enrolled student. The permits must be displayed in

alphabetical order by last name, then alphabetical order by first name, and, if more than one student has the same name, by student permit number.

(h) Schools must either use a time clock or credit hours to track student hours and maintain a daily record of attendance.

(i) Schools using time clocks must ensure compliance with the following requirements and post a sign at the time clock that states the following department requirements:

(1) Each student must personally clock in/out.

(2) No credit may be given for any times written in, except in a documented case of time clock failure or other situations approved by the department.

(3) If a student is in or out of the facility for lunch, the student must clock out.

(4) Students leaving the facility for any reason, including smoking breaks, must clock out, except when an instructional area on a campus is located outside the approved facility, that area is approved by the department and students are under the supervision of an instructor.

(j) Students are prohibited from preparing hour reports or supporting documents. Only school owners and school designees, including instructors, may electronically submit information to the department in accordance with this chapter. No student permit holder may electronically submit information to the department under this chapter.

(k) A school must properly account for the hours granted to each student. A school may not engage in any act directly or indirectly that grants or approves student credit that is not accrued in accordance with this chapter. A school must maintain and have available for a department and/or student inspection the following documents for a period of the student's enrollment through 48 months after the student completes the curriculum standards, withdraws, or is terminated:

(1) daily record of attendance;

(2) the following documents if a time clock is used:

(A) time clock record(s);

(B) time clock failure and repair record(s); and

(C) field trip records in accordance with §83.202(f)(4); and

(3) all other relevant documents that account for a student's credit under this chapter.

(l) Schools using time clocks must, at least one time per month submit to the department an electronic record of each student's accrued clock hours in a manner and format prescribed by the department. A school's initial submission of clock hours must include all hours accrued at the school. Delayed data submission(s) are permitted only upon department approval, and the department will prescribe the period of time for which a school may delay the electronic submission of data, to be determined on a case-by-case basis. Upon department approval, a school may submit data required under this subsection in an alternate manner and format as determined by the department, if the school demonstrates that the requirements of this subsection would cause a substantial hardship to the school.

(m) Schools using credit hours must, at the end of the course or module or if the student drops or withdraws, submit to the department an electronic record of each student's accrued credit hours in a manner and format prescribed by the department.

(n) Schools changing from clock hours to credit hours or from credit hours to clock hours must apply with the department for approval, on a department approved form, prior to making any changes.

(o) Successful completion of 1 credit hour is equal to 37.5 clock hours. This equivalency will be used for conversion between clock hours to credit hours or credit hours to clock hours and the department must periodically assess this equivalency conversion to ensure it is an acceptable industry standard.

(p) Except for a documented leave of absence, schools must electronically submit a student's withdrawal or termination to the department within 10 calendar days after the withdrawal or termination. Except for a documented leave of absence, a school must terminate a student who does not attend class for 30 consecutive days.

(q) All areas of a school or campus are acceptable as instructional areas for a public school, provided that the instructor is teaching barbering or cosmetology curricula required under §83.202.

(r) A private school or public post-secondary school may provide barbering and cosmetology instruction to public high school students by contracting with the school district and complying with Texas Education Agency law and rules. A public high school student receiving instruction under such contract is considered to be a public high school student enrolled in a public school barbering and cosmetology program for purposes of the Act and department rules.

(s) Schools may establish school rules of operation and conduct, including rules relating to absences and clothing, that do not conflict with this chapter.

(t) Schools must ensure that guest presenters possess the necessary knowledge and teaching ability to present a curriculum standard topic and that an instructor is present during the guest presenter's classroom teaching.

(u) Schools must have a classroom separated from the laboratory area and equipped with the following equipment:

(1) if using a time clock to track student hours, one day/date formatted computer time clock;

(2) desks and chairs or table space for each student in attendance;

(3) multi-media equipment;

(4) a sink with hot and cold running water and secure space for storage and dispensing of supplies and equipment;

(5) a suitable receptacle for used towels/linens;

(6) covered trash cans in lab area;

(7) wet disinfectant soaking container, large enough to fully immerse tools and implements;

(8) for each student, equipment that is:

(A) sufficient to enable the student to perform the services associated with the curriculum standards for which the student is enrolled;

(B) in good working condition; and

(C) of adequate design to permit effective instruction;

(9) if offering the class A barber or operator curriculum standards, the following equipment available in adequate number for student use:

(A) shampoo bowl and shampoo chair;

(B) hair drying equipment or professional hand-held hair dryers;

(C) cold wave rods;

(D) thermal iron (electric or non-electric);

(E) styling station covered with a non-porous material that can be cleaned and disinfected, with mirror and styling or barber chair (swivel or hydraulic);

(F) mannequin with sufficient hair;

(G) professional hand clippers;

(H) manicure station and stool;

(I) facial bed or a chair that reclines;

(J) dry sanitizer; and

(K) wet disinfectant soaking containers, large enough to fully immerse tools and implements;

(10) if offering the esthetician curriculum standards, the following equipment available in adequate number for student use:

(A) facial bed or a chair that reclines;

(B) lighted magnifying glass;

(C) woods lamp;

(D) dry sanitizer;

(E) steamer machine;

(F) brush machine for cleaning;

(G) vacuum machine;

(H) high frequency machine for disinfection, product penetration, stimulation;

(I) galvanic machine for eliminating encrustations, product penetration;

(J) mannequin head; and

(K) wet disinfectant soaking containers, large enough to fully immerse tools and implements.

(11) if offering the manicure curriculum standards, the following equipment available in adequate number for student use:

(A) an autoclave, dry-heat sterilizer or ultra-violet sanitizer;

(B) manicure station with sufficient lighting;

(C) client chair;

(D) student stool or chair;

(E) whirlpool foot spa or foot basin;

(F) electric nail file;

- (G) UV light curing system;
- (H) paraffin bath and paraffin wax; and
- (I) wet disinfectant soaking containers;

(12) if offering the esthetician/manicure curriculum standards, the equipment required for the esthetician curriculum standards as listed in paragraph (10); and the equipment required for the manicure curriculum standards as listed in paragraph (11); in adequate number for student use; and

(13) if offering the eyelash extension curriculum standards, the following equipment available in adequate number for student use:

- (A) facial bed, facial chair, or massage table, all of which must allow the consumer to lie completely flat;
- (B) stool or chair;
- (C) lamp;
- (D) mannequin head;
- (E) wet disinfectant soaking containers; and
- (F) dry sanitizer.

(v) Schools must display in the school, in a conspicuous place clearly visible to the public:

- (1) a copy of the school's most recent inspection report issued by the department or a notice that a copy of the school's most recent inspection report issued by the department is available upon request;
- (2) a sign, acceptable to the department, regarding human trafficking information as required by Texas Occupations Code §1603.356 and this chapter; and
- (3) a sign that reads "SCHOOL--STUDENT PRACTITIONERS" in at least 10-inch block letters, or the sign provided by the department, visible from the outside of each client entrance to the licensed school.

(w) A school may not award credit or provide instruction for, and a student may not earn, more than 184 hours or equivalent credit hours per calendar month.

(x) Each school must display a copy of §§83.100-83.115. A school may meet this requirement by placing the law and rules book so that it is accessible to all students and all staff who work in the school.

(y) A school must not allow an instructor to teach barbering or cosmetology services outside the scope of the instructor's practitioner license.